



CHAPTER xl.

An Act to authorise the urban district council of Worksop to purchase the undertaking of the Worksop Waterworks Company and to supply water within the urban district of Worksop and the neighbourhood thereof and to make further provision in regard to the local government and improvement of the district and for other purposes. A.D. 1910.
[26th July 1910.]

WHEREAS the urban district of Worksop in the county of Nottingham (in this Act called "the district") is under the local government of the urban district Council of Worksop (in this Act called "the Council"):

And whereas the Worksop Waterworks Company (in this Act called "the Company") were by the Worksop Waterworks Act 1875 incorporated and authorised to construct works and to supply water within the limits thereby prescribed:

And whereas further powers in relation to their undertaking and the raising of additional capital for the purposes thereof were conferred upon the Company by the Worksop Water Order 1888 confirmed by the Water Orders Confirmation (No. 2) Act 1888 and the Worksop Water Order 1902 confirmed by the Gas and Water Orders Confirmation (No. 2) Act 1902:

And whereas the Company have constructed waterworks and are supplying water within the said area:

And whereas by the Act of 1875 powers were conferred upon the Company to sell and the local board for the district of Worksop (being the predecessors of the Council) to purchase by

A.D. 1910. agreement the undertaking of the Company and for the transfer of the undertaking to and the vesting thereof in the Local Board and for the application of the purchase money and the dissolution of the Company:

And whereas by the Worksop Waterworks Act 1909 the construction of certain existing works by the Company was sanctioned and confirmed and certain other powers were conferred upon the Company:

And whereas by section 15 of the Act of 1909 it is provided that—

(1) If the urban district council of Worksop shall introduce a Bill in the next available session of Parliament and bonâ fide promote the same for an Act for the purchase of the undertaking of the Company the Company shall not oppose such Bill except in so far as may be necessary in order to secure the insertion therein of clauses to protect their interests with respect to such purchase:

(2) If such Bill receives Royal Assent nothing in this Act shall authorise the company for the purpose of the determination of the purchase price to be paid for the said undertaking to bring into account or to make any claim in respect of any powers rights or advantages conferred on them by or resulting from the passing of this Act:

(3) The Company shall not except with the consent of the Council raise any capital in pursuance of this Act prior to the twentieth day of November one thousand nine hundred and nine and if the Council shall give notice for such Bill as aforesaid in October or November one thousand nine hundred and nine the Company shall not raise any capital in pursuance of this Act during the promotion of such Bill save what is necessary for carrying on the undertaking and works to be done under this Act and satisfying existing obligations:

And whereas it is expedient that the water supply of the district should be under the control of the Council and that the undertaking of the Company should be transferred to and vested

in the Council in manner provided by this Act and that further A.D. 1910.
provision should be made in regard to the supply of water
within the limits of this Act:

And whereas it is expedient that further powers be conferred
upon the Council for the regulation of streets and buildings and
sanitary matters and otherwise in relation to the health local
government regulation and improvement of the district:

And whereas the purposes of this Act cannot be effected
without the authority of Parliament:

And whereas an absolute majority of the whole number of
the Council at a meeting held on the eleventh day of March
one thousand nine hundred and nine after ten clear days' notice
by public advertisement of such meeting and of the purpose
thereof in the Worksop Guardian a local newspaper published and
circulating in the district such notice being in addition to the
ordinary notices required for summoning such meeting resolved
that the expense in relation to promoting the Bill for this Act
should be charged on the district fund and general district rate:

And whereas such resolution was published twice in the said
Worksop Guardian and has received the approval of the Local
Government Board:

And whereas the propriety of the promotion of the Bill for
this Act was confirmed by an absolute majority of the whole
number of the Council at a further special meeting held in
pursuance of a similar notice on the third day of January one
thousand nine hundred and ten being not less than fourteen
days after the deposit of the Bill in Parliament:

And whereas in relation to the promotion of the Bill for this
Act the requirements contained in the First Schedule to the
Borough Funds Act 1903 have been observed:

May it therefore please Your Majesty that it may be enacted
and be it enacted by the King's most Excellent Majesty by and
with the advice and consent of the Lords Spiritual and Temporal
and Commons in this present Parliament assembled and by the
authority of the same as follows (that is to say):—

PRELIMINARY.

1. This Act may be cited as the Worksop Urban District Short title.
Council Act 1910.

A.D. 1910.

Incorporation of Acts.

2. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):—

(1) The Waterworks Clauses Acts 1847 and 1863 except—

(a) The words “with the consent in writing of the owner
“or reputed owner of any such house or of the agent
“of such owner” in section 44 of the Waterworks
Clauses Act 1847;

(b) Sections 75 to 82 of the Waterworks Clauses Act 1847
with respect to the amount of profit to be received
by the undertakers when the waterworks are carried
on for their benefit and section 83 relating to
accounts; and

(2) The Lands Clauses Acts (except section 127 of the Lands
Clauses Consolidation Act 1845).

Interpreta-
tion.

3. In this Act the several words and expressions to which meanings are assigned in the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

“The district” means the urban district of Worksop;

“The Council” means the urban district council of the district;

“The clerk” “the surveyor” “the medical officer” and
“the inspector of nuisances” respectively mean the clerk
the surveyor the medical officer of health and inspector
of nuisances appointed by the Council in pursuance of
the powers of any public Act and “medical officer”
includes any person duly authorised to act temporarily
as medical officer of health;

“The district fund” and “the general district rate” mean
respectively the district fund and the general district
rate of the district;

“The Company” means the Worksop Waterworks Company;

“The Act of 1875” means the Worksop Waterworks Act
1875;

“The Act of 1909” means the Worksop Waterworks Act
1909;

“The undertaking of the Company” includes all the water-works mains pipes machinery lands buildings and plant and all other the real and personal property assets and effects of whatever nature and all the rights powers and privileges vested in or belonging to or had or enjoyed by the Company at the date of the transfer of their undertaking to the Council under the provisions of this Act except the books and papers relating exclusively to the shareholders in and the members and constitution of the Company;

A.D. 1910.

“Daily penalty” means a penalty for every day on which any offence is continued by a person after conviction thereof.

4. The limits of this Act for all purposes shall be the district.

Limits of
Act.

PURCHASE OF UNDERTAKING.

5.—(1) Within six months after the passing of this Act the Council shall give to the Company notice in writing of their intention to purchase the undertaking and thereupon the Company shall sell to the Council and the Council shall purchase the undertaking of the Company for such price or consideration being a sum in gross and on such terms and conditions as may be agreed upon between the Company and the Council or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression “the promoters of the undertaking” shall mean the Council and the expression “lands” shall mean the undertaking of the Company.

Company to
sell their
undertaking
to Council.

(2) The umpire (if any) shall in default of agreement be appointed by the Board of Trade and the Company shall be considered as vendors by agreement and not by compulsion and the Council shall bear the taxed costs charges and expenses of the Company of and incident to such arbitration.

(3) The Council shall pay the purchase money to the Company on such day as may be agreed between the Council and the Company or failing agreement on the twenty-fourth day of March the twenty-third day of June the twenty-eighth day of September

A.D. 1910. or the twenty-fourth day of December which shall first happen after the expiration of two months from the determination by agreement in writing or by the award of the arbitrator of the amount of the purchase money and upon such payment the undertaking of the Company shall by virtue of this Act become and shall thenceforth be transferred to and vested in the Council free from all charges debts and liabilities upon or affecting the same and such transfer and vesting are in this Act referred to as "the transfer."

(4) In addition to the sums to be paid by the Council to the Company under the foregoing provisions of this Act the Council shall on the date of the transfer pay to the Company—

(A) The costs and expenses incurred by them in obtaining clauses and amendments for their protection in the Bill for this Act (so far as such costs and expenses shall not have been charged to and defrayed out of moneys of the Company brought into account in the accounts of the Company previous to the date of transfer) and also their costs and expenses of and incident to the transfer of the undertaking of the Company and the winding up of the Company such costs and expenses respectively to be taxed in the first-named case by the taxing officer of the House of Lords or of the House of Commons and in the second case by a taxing master of the Supreme Court of Judicature in England:

(B) The actual amount expended by them with the consent of the Council on the construction of the works authorised by the Act of 1909.

The production of a King's printers' copy of this Act duly stamped together with a receipt for the purchase money purporting to be signed by three directors of the Company or by the cashier of the Bank of England shall (unless it be proved that the purchase money has not been paid) be conclusive evidence in all courts and proceedings of the transfer.

Receipt for
purchase
money.

6. The receipt in writing of three directors of the Company for any money to be paid to the Company by the Council shall effectually discharge the Council from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being

answerable or accountable for the loss misapplication or non-application thereof. Provided that if from any cause the Council are unable to obtain such receipt they may pay the money into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Council by the cashier of the said bank for the money which shall have the same effect as the receipt of three directors of the Company.

A.D. 1910.

7. The Council shall take over all stock in trade coal and other stores at the date of the transfer belonging to the Company at such price failing agreement as may be settled by a valuer to be agreed upon between the parties or to be nominated by the President of the Surveyors' Institution upon the application of either party.

Council to purchase movable goods of Company.

8. On and from the transfer George Heaps (secretary and manager) Henry Davey (collector) and Edwin Richards (clerk) shall be taken by the Council into their service in the same or a similar capacity or employment at the same salary and on the same terms and conditions as those respectively in at and on which they were respectively employed by the Company on the 1st day of March 1909 and if the Council within three years from the transfer shall (for any cause other than his own misconduct) dismiss from their service any of the said persons the Council shall pay to such person by way of compensation for loss of his employment such sum as shall be agreed between them and such person or as failing agreement shall be determined by arbitration in accordance with the provisions of the Arbitration Act 1889.

Certain officers of Company to be taken into service of Council.

9. The Company shall bear and pay all outgoings of every kind and shall be entitled to all receipts from their undertaking up to the date of the transfer and as from that date all outgoings shall be borne and paid by the Council. Provided that nothing in this Act contained shall entitle the Company to retain for their own benefit so much of any water rates or rents or other payments paid or payable in advance as shall be attributable to any period after the transfer but such rates rents or other payments shall be apportioned and so much thereof as is attributable to any period after the transfer shall be paid over by the Company to the Council.

Company to pay outgoings and be entitled to receipts until transfer.

A.D. 1910.

Maintenance
of under-
taking by
Company
till transfer.

10. Until the transfer the undertaking of the Company shall be maintained and carried on by the Company as heretofore in the ordinary course of business with all due care but the Company shall not without the previous consent of the Council make or enter into any contract agreement or obligation except such as shall be in the ordinary course of the maintenance of the works and the proper conduct of the undertaking.

Liabilities
to be de-
frayed by
Company.

11. All debts and liabilities secured upon or affecting the undertaking or due from or payable by the Company which at the date of the transfer shall remain undischarged unpaid or unsatisfied shall be discharged paid or satisfied by the Company and the Company shall indemnify the Council against the same and if at the date of the transfer any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of the Company the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer or of anything in this Act but the same may be continued prosecuted and enforced by against or in favour of the Company as and when it might have been continued prosecuted and enforced by against or in favour of them if this Act had not passed.

Contracts of
Company to
be binding
on Council.

12. Subject to the provisions of this Act all agreements contracts conveyances deeds and other instruments affecting the Company and in force at the time of the transfer shall after the transfer be as binding and of as full force and effect against or in favour of the Council and may be enforced as fully and effectually as if instead of the Company the Council had been a party thereto.

Books &c.
to remain
evidence.

13. All books and documents which if the transfer had not been made would have been evidence in respect of any matter for or against the Company shall after the transfer be admitted in evidence in respect of the same or the like matter for or against the Council.

Winding up
of Company.

14.—(1) From and after the date of the transfer the Company shall subsist only for the purpose of paying their debts and liabilities and of receiving and recovering the sums payable to them as provided by this Act and distributing the same and the purchase money and other moneys payable to the Company in accordance with the provisions of this Act and for winding up the affairs of the Company and carrying into effect the

A.D. 1910.

purposes of this Act so far as they relate to the Company and the directors of the Company who are in office at the date of transfer and the survivors or survivor of them shall continue in office without re-election and they or a majority of them shall have full power and authority to take all necessary proceedings for carrying into effect the several purposes of this section.

If the number of directors of the Company be reduced by death resignation or otherwise below three before the completion of such winding up the continuing directors shall from time to time choose a shareholder or shareholders of the Company to fill the vacancy or vacancies so caused.

(2) Forthwith after the date of the transfer the directors of the Company shall proceed to wind up the affairs of the Company and after payment of the debts and liabilities of the Company shall pay and distribute their net moneys to and among the several persons who at the date of transfer were the registered holders of shares in the capital of the Company or their respective executors administrators and assigns according to the amount of the maximum dividend payable to each shareholder and for the purpose of such distribution the several persons whose names shall appear in the books of the Company at the date of transfer to be the proprietors of shares therein shall unless the contrary be proved to the satisfaction of the directors be considered to be shareholders of the Company and the receipt in writing of such persons or of their executors or administrators or of the committee or guardian of the estate of any such person who shall be an idiot lunatic or minor shall be an effectual discharge to the Company and the directors thereof for the money therein expressed to be received and shall exonerate them from any obligation affecting the shares or interest in respect whereof the money is paid.

(3) When the directors of the Company are for six months after the date of the transfer unable after diligent inquiry to ascertain the person to whom any money ought to be paid or who can give an effectual receipt for the same they may pay the same into the High Court or if not exceeding five hundred pounds into the county court of Nottingham holden at Worksop under any Act for the time being in force for the relief of trustees and every such payment shall effectually discharge the Company and the directors thereof from all further liability with respect to the money so paid in.

A.D. 1910.

(4) After the date of the transfer and until the Company shall be finally wound up and dissolved the Company shall be entitled to retain the directors' minute books the register of shareholders and other books relating solely to the holders of shares in and to the constitution of the Company and shall have access at all reasonable times to the other books documents and accounts relating to the transferred undertaking for the purpose of making up the accounts of the Company to the date of the transfer and for all other reasonable purposes in relation to the winding up of the Company and upon the winding up of the Company the said books retained by them (other than the directors' minute books and such of the books of the Company as relate exclusively to the shareholders in and the members and constitution of the Company) shall be handed over to the Council.

(5) Upon the purposes specified in this section being fulfilled the Company shall ipso facto be dissolved.

Repeal of
Acts and
Orders re-
lating to
Company
with certain
exceptions.

15. As from the transfer the Act of 1875 the Worksop Water Order 1888 confirmed by the Water Orders Confirmation (No. 2) Act 1888 and the Worksop Water Order 1902 confirmed by the Gas and Water Orders Confirmation (No. 2) Act 1902 and the Act of 1909 shall be repealed except the following sections thereof which after the transfer shall apply as if the Council were therein named instead of the Company (that is to say):—

The Act of 1875—

Section 6 (Power to make works according to deposited plans);

Section 29 (Power to take lands and waters for purposes of Act);

Section 37 (Rates for supply of water for domestic purposes);

Section 38 (Rates for waterclosets and baths);

Section 56 (For protection of Manchester Sheffield and Lincolnshire Railway);

Section 57 (Saving rights of lords of manors):

The Order of 1902—

Article 23 (Contracts for supplying water in bulk):

The Act of 1909—

Section 1 (Short title);

Section 2 (Incorporation of general Acts) omitting sub- A.D. 1910.
section (2);

Section 3 (Interpretation);

Section 4 (Confirming construction of existing works);

Section 5 (Subsidiary works);

Section 6 (Works to form part of undertaking);

Section 7 (Power to take waters);

Section 8 (Limiting powers of Company to abstract
water);

Section 9 (Power to owners to grant easements &c.);

Section 10 (Temporary discharge of water into streams);

Section 11 (Water not to be supplied outside Nottingham-
shire);

Section 12 (Obligation to supply Blyth and Cuckney
Rural District Council);

Section 13 (For protection of Wigan Coal and Iron
Company Limited);

Section 14 (For protection of Duke of Newcastle).

16. The Council may hold any lands acquired by them which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of the Lands Clauses Acts but the Council shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than such buildings and works as may be incident to or connected with their waterworks.

Power to
hold lands
for pro-
tection of
works.

17. The agreement made the 24th day of March 1909 between the Most Noble Henry Pelham Archibald Douglas Duke of Newcastle of the first part the Wigan Coal and Iron Company Limited of the second part and the Worksop Waterworks Company of the third part and set forth in the schedule to the Act of 1909 shall (mutatis mutandis) apply to and is hereby made binding on the Council and shall be read as if the Council were named therein instead of the Company.

Confirmation
of agree-
ment.

SUPPLY OF WATER.

18. Notwithstanding anything contained in the Act of 1875 or this Act the Council may with the sanction of the Local Government Board and after local inquiry by such Board at any

Revision of
water rates.

A.D. 1910. time increase the water rates leviable by them by such amount as may be considered by the Council to be necessary in order to meet the estimated expenditure of the water undertaking of the Council.

Alteration
of basis of
collection of
water rates.

19. From and after the expiration of ten years after the transfer the rates to be charged by the Council for water supplied for domestic purposes shall be calculated on the basis of the rateable value of the premises supplied instead of upon the annual rackrent or yearly value.

The rateable value of any such premises as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues or if there is no such list in force by the last rate made for the relief of the poor. Provided that where the water rate is chargeable on the rateable value of a part only of any hereditament entered in the valuation list such rateable value shall be a fairly apportioned part of the rateable value of the whole tenement ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction.

Compound-
ing for water
rates.

20. Notwithstanding anything contained in the Act of 1875 or this Act in case any owner of three or more dwelling-houses the gross estimated rental of each of which shall not exceed ten pounds shall undertake to pay the water rates and charges in respect of such houses whether the same be occupied or not the Council shall allow him an abatement of seven and one-half per centum on the amount thereof.

Provisions
for avoiding
a deficiency
on accounts
of water
undertaking.

21.—(1) The Council shall once in the second year after the transfer and once in each succeeding year cause to be laid before them a statement of the accounts of their water undertaking and the Council shall thereupon fix the rates prices and charges to be demanded for the supply of water for domestic purposes during the next ensuing year at such amounts respectively (not exceeding the maximum rates prices and charges which they are for the time being entitled to demand in pursuance of this Act or any later Act) that so far as is reasonably practicable the revenue for that year shall not be less than the estimated amount of the expenditure on revenue account for that year in respect of the said undertaking (including in such expenditure the charges for interest and instalments of principal or sinking fund payments on borrowed moneys).

(2) Provided, that nothing in this section contained shall prevent the Council from entering into contracts for periods exceeding one year under special circumstances with particular consumers to supply water at prices fixed by the contracts. A.D. 1910.

(3) There shall not be made against the general district rate in respect of street watering or other sanitary purposes for which water shall be used by the Council a charge at any higher price than that charged for the time being by the Council to consumers taking a supply of water for other than domestic purposes in similar quantities and under similar conditions.

22. The Council may if they think fit allow discounts or rebates to consumers of water in consideration of prompt payment of charges for water supplied for domestic purposes not exceeding in any case five per centum. Provided that all such discounts or rebates shall be at the same rate under like circumstances to all consumers. Provided also that if and so long as the Council allow any such discounts or rebates notice of the effect of this enactment shall be endorsed on every demand note for water. Discounts.

23. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Council so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner. Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate. Rates payable by owners of small houses.

24. The Council shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water. Council not bound to supply several houses by one pipe.

25. A notice to the Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council. Notice of discontinuance.

26.—(1) The Council may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature Byelaws for preventing waste &c. of water.

A.D. 1910. materials workmanship and strength and the mode of arrangement connexion disconnexion alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

(2) Such byelaws shall apply only in the case of premises to which the Council are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Council may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Council as the water rates in respect of the premises are recoverable.

Supply by
measure.

27. The Council may supply water for other than domestic purposes on such terms and conditions as the Council think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates. Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes.

Supply to
houses partly
used for
trade &c.

28. The Council shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required.

Price of
supply by
measure.

29. The price to be charged for a supply of water by measure shall not exceed two shillings per thousand gallons. Provided that the Council shall be entitled to charge for each such supply (other than a supply given under the provisions of the section of this Act the marginal note of which is "Supply to houses partly used for trade &c.") a sum of not less than ten shillings in respect of the water supplied in any quarter of a year.

30. Before any person connects or disconnects any meter by means of which any of the water of the Council is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Council of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Council and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings:

A.D. 1910.

Notice to
Council of
connecting
or discon-
necting
meters.

31. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Council or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Council shall (without prejudice to any other right or remedy for the protection of the Council) be liable to a fine not exceeding five pounds and the Council may in addition thereto recover the amount of any damage by them sustained:

Injuring
meters &c.

And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Council or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Council the Council may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Council by the person so offending and may be recovered by them as water rates are recoverable The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Council when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction

A.D. 1910. consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Power to
supply
fittings.

32.—(1) The Council may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Council in providing such materials and executing such work shall be paid by the person requiring the same.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof.

Power to lay
pipes in
streets not
dedicated to
public use.

33. The Council may on the application of the owner or occupier of any premises within the limits of this Act abutting on or being erected in any street laid out but not dedicated to public use supply such premises with water and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for the furnishing such supply.

Provision as
to houses
without
watersupply.

34. The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings unless the dwelling-house was erected before the passing of this Act and such supply is not available.

PUBLIC BUILDINGS.

Power to
provide
public
buildings.

35. The Council may on lands already acquired by and vested in them for the purposes of their Town Hall and Market undertaking hold furnish equip maintain insure and carry on a

town hall public hall assembly rooms and other public buildings with all necessary and suitable offices committee rooms entertainment rooms ante-rooms refreshment rooms kitchens cloak rooms lavatories promenades gardens outbuildings conveniences and appurtenances and may for the purposes thereof alter adapt extend or otherwise deal with the existing buildings belonging to the Council. A.D. 1910.

36. The Council may grant or let with or without charge the use of the whole or any part of any public buildings for the purpose of any public or other meetings or any musical or other entertainments or for other purposes approved by the Council on such terms and conditions as they may think fit. Letting of public buildings.

37. Any moneys received by the Council in connexion with the execution of the purposes of this part of this Act shall be carried to the credit of the district fund. Application of moneys under this part of Act.

STREETS AND BUILDINGS.

38.—(1) No person except with the consent of the Council shall in any new street commence to erect any new building or to excavate for the foundation thereof until the whole length of the street shall have been defined by posts or in some other sufficient manner to indicate the approved line and level thereof. No building allowed until street defined.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

39.—(1) Where any street or road in the district repairable by the inhabitants at large is in the opinion of the Council narrow or inconvenient or without any sufficiently regular line of frontage or where in their opinion it is necessary or desirable that the line of frontage should be altered the Council may from time to time prescribe and define what shall thereafter be the line of frontage to be observed on either side of such street or road. The line which in any case the Council propose to prescribe and define shall be distinctly marked and shown on a plan to be signed by the clerk and deposited with the surveyor and such plan shall be at all reasonable times thereafter open for the inspection of the public without charge and one month at least before the Council formally prescribe and define the line they shall give notice in writing of the deposit of the said plan. Council may define future line of streets.

A.D. 1910. — to every owner interested whose name and address they can ascertain. No new building erection excavation or obstruction (being of a permanent character) shall be made nearer to the centre of the street or road than such line.

(2) The Council may and if required so to do by the owner shall purchase the land for the time being unbuilt upon lying between any such line as aforesaid and the street or road and the same when purchased shall vest in the Council as part of the street or road and the amount of purchase money shall in case of difference be settled by arbitration under the Arbitration Act 1889.

(3) Whenever in any of the above cases the Council shall require the said line to be observed and kept they shall make full compensation to the owner and other persons interested in any land for any loss or damage they may sustain in consequence of the line of frontage being set back and the Council shall also make to the owner of any adjoining land or building and to all other persons interested in any such adjoining land or building full compensation in respect thereof for all damage loss or injury (if any) sustained by them to such land or building by reason of the Council requiring the said line to be observed and kept.

(4) In estimating the amount of compensation or purchase money to be paid by the Council under this section the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of the street or road shall be fairly estimated and shall be set off against the said compensation or purchase money.

(5) If after any such line has been defined and prescribed as aforesaid any person offends against the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Trees or
shrubs over-
hanging
streets and
footpaths.

40.—(1) Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Council may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within seven days so as to prevent such obstruction or

interference and in default of compliance the Council may themselves carry out the requisition of their notice doing no unnecessary damage. A.D. 1910.

(2) Any person aggrieved by any requirement of the Council under this section may appeal to a court of summary jurisdiction within seven clear days after the service of such notice provided he gives written notice of such appeal and the grounds thereof to the clerk of the Council and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable as a civil debt Notice of the right to appeal shall be endorsed on every requirement of the Council under this section.

41. The Council may by notice in writing require the owner or occupier of any dwelling-house to provide galvanised iron or enamelled iron dustbins for the convenient removal of house refuse and such dustbins shall be of such size and construction as may be approved by the Council and any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Council shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings Provided that this section shall not authorise the Council to require the provision of a dustbin thereunder in any case in which a dustbin or ashpit in use at the passing of this Act is of suitable size and in proper order and condition. Regulation dustbins.

42. The Council may provide and maintain orderly bins for the collection and temporary deposit of street refuse in upon or under the streets in the district of such dimensions and in such positions as they may from time to time determine. Street orderly bins.

SEWERS AND DRAINS.

43.—(1) The Council may by resolution declare that any sewer for the time being belonging to them shall thenceforth be appropriated and used for sewage (in this section called a "sewage sewer") and they may also declare that any other sewer for the time being belonging to them shall thenceforth be appropriated and used for surface water (in this section called a "surface-water sewer"). Separate sewers for surface water and sewage may be required.

(2) Where under the provisions of any Acts for the time being in force in the district the Council have power to require

A.D. 1910. any street to be sewered they may require the provision of separate sewage sewers and surface-water sewers and the provisions of those Acts shall apply to such sewers accordingly Provided that the provisions of this subsection shall not be exercised unless and until the Council shall have provided sewers adequate and proper for the purpose of receiving the sewage from such separate sewage sewers and shall have provided sewers or other outlets adequate and proper for the purpose of receiving the surface water from such separate surface-water sewers.

(3)—(A) Where in any street separate sewage sewers and surface-water sewers shall have been provided (whether before or after the passing of this Act) no sewage shall be allowed to pass from any premises into the surface-water sewers and so far as practicable no surface or storm water shall be allowed to pass into the sewage sewers except with the consent in writing of the Council.

(B) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(C) Provided that in the case of any premises existing at the time of the provision of separate sewers the drains whereof were already connected with a sewer and would but for the provisions of this section have been sufficient effectually to drain such premises the provisions of this subsection shall not apply to such premises until the Council have at their own expense made all necessary alterations to the drains and pipes of such premises in order to keep separate the sewage and surface-water drainage thereof and the Council may if they think fit make all such alterations.

Council may
require en-
larged sewer.

44. If in any street not repairable by the inhabitants at large the Council for the purpose of main drainage or otherwise shall require a larger sewer to be made than they consider necessary for the ordinary sewerage of such street the person laying out such street shall construct such enlarged sewer in accordance with the requirements of the Council and the additional cost thereof as ascertained by the surveyor shall be paid by the Council.

Council
may make
communi-
cations

45. If the owner or occupier of any premises within the district desires that the sewer or drain from such premises shall be made to communicate with any sewer of the Council

such communication shall be made by the Council upon the cost or estimated cost of making the communication being paid to the Council or the payment thereof to them being secured to their satisfaction and the Council may execute all works necessary for that purpose.

A.D. 1910.
—
between private drains and their sewers on payment &c.

46. The powers given by section nineteen of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner.

Amendment of section 19 of Public Health Acts Amendment Act 1890.

47.—(1) If it appears to the Council that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Council may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Council if they so decide or by the owners in such manner as the Council shall direct and the costs and expenses of such combined drain and the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Council shall determine and if such drain is constructed by the Council such costs and expenses may be recovered by the Council from such owners.

Council may order houses to be drained by a combined drain.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

(3) Provided that the Council shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by them.

SANITARY PROVISIONS.

48.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice cream or other similar commodity who within the district—

For regulating manufacture and sale of ice cream &c.

(a) Causes or permits ice cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping-room

A.D. 1910.

or in any room cellar or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain ; or

(b) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination ; or

(c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer ;

shall be liable to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice cream or similar commodity or materials for the manufacture of the same in such building and the Council shall compensate the owner of the ice cream commodity or materials so destroyed.

(3) Every dealer in ice cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow or stand and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

Inspection of
premises.

49.—(1) Any officer duly authorised by the Council in that behalf shall at all reasonable times have the same power of entry and inspection into and of the premises of any manufacturer or vendor of or merchant or dealer in ice cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein as an officer of the Council would have under section one hundred and two of the Public Health Act 1875 in the cases therein mentioned.

(2) Any person refusing entry into such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings for each offence.

FINANCIAL PROVISIONS.

A.D. 1910.

50.—(1) The Council may independently of any other borrowing power borrow at interest any sum or sums of money for the following purposes not exceeding the respective amounts following (that is to say):—

Power to
borrow.

- (a) For the purchase of the undertaking of the Company and for defraying the costs and expenses incident to such purchase and to the transfer of such undertaking to the Council (other than the costs of this Act) such sum or sums as may be necessary;
- (b) For and in relation to the improvement and extension of the waterworks the sum of five thousand pounds;
- (c) For paying the costs charges and expenses of this Act and of opposing the Act of 1909 as herein-after provided the sum requisite for that purpose;

and with the consent of the Local Government Board such further money as may be necessary for the construction of the works authorised by the Act of 1909 for the extension of mains for working capital or for any of the purposes of this Act or of the water undertaking of the Council.

(2) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Council may mortgage or charge the district fund and general district rate and if such money is borrowed for waterworks purposes they may also charge the revenue of their water undertaking.

51. The powers of borrowing money given by this Act shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Certain
regulations
of Public
Health Act
1875 as to
borrowing
not to apply.

52. The Council may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others.

Mode of rais-
ing money.

53. Sections 236 to 238 inclusive of the Public Health Act 1875 (as to the form register and transfer of mortgages) shall extend and apply to mortgages granted under the provisions of this Act.

Provisions of
Public
Health Act
as to mort-
gages to
apply.

A.D. 1910.

Periods for
repayment of
money bor-
rowed.

54. The Council shall pay off all money borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed period") following (that is to say):—

As to money borrowed for the purposes (a) mentioned in the section of this Act the marginal note whereof is "Power to borrow" within forty years from the date or dates of borrowing the same:

As to money borrowed for the purposes (b) mentioned in the said section within thirty years from the date or dates of borrowing the same:

As to money borrowed for the purpose (c) mentioned in the said section within five years from the passing of this Act:

As to money borrowed with the consent of the Local Government Board within such period as that Board may sanction.

Mode of
payment off
of money
borrowed.

55. The Council shall pay off all money borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or partly by one of those methods and partly by another of them and the payment of the first instalment shall be made within one year from the date of borrowing the sum in respect of which the payment is made.

Return to
Local Go-
vernment
Board as to
repayment of
debt.

56.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by

action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court. A.D. 1910.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default shall have been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

57. A person lending money to the Council under this Act shall not be bound to inquire as to the observance by the Council of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof. Protection of lender from inquiry.

58. The Council shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Council shall be sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or encumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register and the Council shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of such money. Council not to regard trusts.

59.—(1) Any mortgagee of the Council by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than one thousand pounds in the whole. Appointment of receiver.

A.D. 1910.

(2) The application for the appointment of a receiver shall be made to the High Court.

Power to
re-borrow.

60.—(1) The Council shall have power—

(A) To borrow for the purpose of paying off any moneys previously borrowed under this Act which are intended to be forthwith repaid; or

(B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under this Act and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

(c) out of moneys derived from the sale of land; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Application
of revenue
and defici-
ency of re-
ceipts.

61.—(1) The Council shall apply all money received by them in respect of their water undertaking (except money borrowed and money derived from the sale of surplus lands or other moneys received on capital account) in manner and in the order following (that is to say):—

First In payment of the working and establishment expenses and cost of maintenance of the undertaking;

Secondly In payment of the interest on moneys borrowed for the purposes of the undertaking;

Thirdly In providing the requisite appropriations or instalments in respect of moneys borrowed for the purposes of the undertaking;

Fourthly In extending and improving (if the Council think fit) any works for the purposes of the undertaking;

Fifthly In providing a reserve fund (if the Council think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in securities in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest money and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Council not exceeding a sum equal to one fifth of the aggregate capital expenditure for the time being by the Council upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Council from the undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of the undertaking or for payment of the cost of renewing any part of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum:

And the Council shall carry to the district fund so much of any balance remaining in any year of the money so received (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Council not be required for carrying on the undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenue of the water undertaking of the Council shall be made good out of the general district rate within twelve months after the deficiency is ascertained.

A.D. 1910.
Application
of money
borrowed.

62. All money borrowed by the Council under the powers of this Act shall be applied only to the purposes for which it is authorised to be borrowed and to which capital is properly applicable.

Expenses of
execution of
Act.

63. Any expenses of the execution by the Council of this Act with respect to which no other provision is made may be defrayed by the Council out of the district fund and general district rate.

Separate
accounts to
be kept and
audited.

64.—(1) The Council shall keep the accounts in respect of their water undertaking separate from all their other accounts distinguishing therein capital from revenue.

(2) Section 58 of the Local Government Act 1894 shall apply to the accounts of the Council and their committee and officers under this Act and to the audit of such accounts.

Inquiries
by Local
Government
Board.

65.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

MISCELLANEOUS.

As to bye-
laws.

66. The provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 (except so much thereof as relates exclusively to byelaws of a rural sanitary authority) shall apply to byelaws made by the Council under this Act.

Authentica-
tion and
service of
notices &c.

67. Where any notice or demand under this Act requires authentication by the Council the signature thereof by the clerk or other duly authorised officer of the Council shall be sufficient authentication. Notices demands orders and other documents

required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the Company at their principal office or place of business. A.D. 1910.

68. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

69. All penalties recovered by the Council or any officer of the Council on their behalf under this Act or any byelaw thereunder shall be paid to the treasurer of the Council and carried by him to the credit of the district fund. Penalties to be paid to treasurer.

70. Save as otherwise in this Act specially provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaw made thereunder may be laid by any officer of the Council duly authorised in that behalf or by the clerk. Informations by whom to be laid.

71. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence or consent or approval of or by the Council or of or by any officer or valuer of the Council or by any conviction or order by a court of summary jurisdiction under any provision of this Act may appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts. As to appeal.

72. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate. Judges not disqualified.

73. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court Recovery of demands in county court.

A.D. 1910. — having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Crown
rights.

74. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of Act.

75. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto and also the costs charges and expenses incurred by the Council in opposing the Act of 1909 as taxed by the taxing officer of the House of Lords or the House of Commons shall be paid by the Council out of the district fund or general district rate or out of moneys to be borrowed by the Council under this Act.

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